

obliterate, and worn out, so that but one letter of many of the names of divers of the said manors could be perceived, but the names of the manors were truly recited as well in the count (which always briefly recites the writ) as in the *habere facias seisinam*: and whether this original was amendable, or not, was a great question between P. Howard Earl of Arundel, cousin and heir of the said Henry Earl of Arundel, and the Lord Lumley, to whom the said Henry Earl of Arundel had conveyed divers of the said manors, &c. And to resolve this question, Sir Christopher Wray, Chief Justice of England, Sir Edward Anderson, Chief Justice of the Common Pleas, Sir Roger Manwood, Chief Baron of the Exchequer, and all the justices of England, assembled themselves together. And it was resolved by them all *una voce*, that the original writ should be amended according to the other parts of the record, *scil.* the count, and the *habere facias seisinam*; and that this misprision and negligence of the clerk in keeping of the original writ should be amended by this statute of 8 Hen. 6. for here doth not appear any want of knowledge in the clerk, but misprision and negligence in keeping of the writ, which is a misprision within the letter [160 b] and meaning of the Act; and *eo potius* in this case, because it was in a common recovery suffered by assent of the parties for assurance of lands. And although it is enacted, that if any record, or parcel thereof, writ, return, pannel, process, or warrant of attorney in the King's Courts, &c. are voluntarily (*b*) stolen, carried away, withdrawn, or avoided by any clerk, that it shall be felony; that doth not prove, that if the original writ or other part of the record be voluntarily stolen, &c. that it cannot be supplied and amended by the other parts of the record: for it was resolved that in both cases, as well where the record becomes imperfect and erroneous by voluntary offence of the clerk, as by his careless negligence, that it should be amended, for all is within this general word, misprision of the clerk. But if such part of the record which is so stolen, &c. or which appears not, cannot be supplied by the other parts of the record, nor by any exemplification made of the record, then it cannot be amended; and *vide* the first clause of this Act of 8 Hen. 6. gives remedy amongst others, where any subtraction or diminution is of any record, process, warrant of attorney, original writ, &c. And according to this resolution a fine was amended of Mich. 8 Jac. as appears by the order and rule of Court following.

Crompton.

Mich. 8 Jacobi Regis.

Lincoln, ss. *In fine levat' in Cur' hic in Octab' Sancti Hilarii, anno regni dom' Eliz. nuper Regine Anglie 16 inter Robertum Tyrwhite militem et al' quer' et Edmund Dighton, armiger' et al' defor' de maneriis de Magna Sturton, Parva Sturton, et al' in com' preed' ; quia constat Cur' super visum pedis ejusdem finis, quod per humiditatem aeris, et pluviam super illam descenden' idem pes fines adeo oblitteratus est, ut multe linee ejusdem totalit' deletæ ita ut legi non possunt: tamen per breve de conventionione, et dedimus potestatem de cognitione inde capiend' ac per concordiam et notam ejusdem finis satis liquet et apparet que fuerunt verba in eodem pede prius script'. Ideo ordinat' est, quod preed' pes finis cum proclam' super inde indorsat' per chirographar' de novo rescribatur, ita quod concord' cum preed' brevi de convent', dedimus potestatem, concordia, et nota ejusd' finis, et cum aliis proclam' indorsat' super pedes finium ejusd' term' et quod preed' pes finis sic oblitterat' a filac' inde abstrahatur, et preed' pes finis sic de novo rescript' in loco ejusdem affiletur.*

And this briefly shall suffice for amendment of the misprision of the clerk in an original writ (E). And as to the case at Bar, the [161 a] rule of the Court was in these words: Crompton. *Ordinatum est per Cur' hic super auditu consilii utriusque partis et examinatione Clerici Cursistar' London et attornat' quer' super sacramenta sua in Cur' hic, quod hæc additio (generoso) nomini defend' in priori parte brevis original' de debito 100 li inde return' et affilat' in Banco hic mense Michaelis anno regni Regis nunc septimo, et omnes*

(b) Palm. 199. 11 Co. 34 b. 3 Inst. 70, 71, 72, 73. Standf. Pl. Cor. 36 b. Dalt. Just. 386. 6 Mod. 280.

(E) "The true rule is that original writs may be amended by 8 H. 6. c. 12. where it is only the misprision of the clerk: but a mistake occasioned by the nescience or ignorance of the clerk is not amendable by that statute." Per Willes, C.J. *Wynne v. Thomas*, Willes 568.